

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/22/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0004497

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF:    MARLA KEEMA  
BAYSINGER

vs.

DEFENDANT: AUBERGE RESORTS, LLC  
ET AL

NATURE OF PROCEEDINGS: MOTION – QUASH – DISCOVERY FACILITATOR  
PROGRAM

**RULING**

Plaintiff Marla Baysinger has filed a motion to quash or modify deposition subpoenas for the production of medical records. Defendant Auberge Resorts opposes the motion arguing their subpoenas are narrowly tailored. The parties were referred to a discovery facilitator and a facilitator was appointed on May 26, 2026. Pursuant to local rule MCR 2.13, the parties were required file a Declaration of Non-Resolution if the matter did not resolve. No Declaration was filed and therefore, the court shall take the matter off calendar. Either party may place the matter back on calendar by filing a Declaration of Non-Resolution and by appearing ex parte to reschedule the hearing.

***All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.***

***The Zoom appearance information for July, 2026 is as follows:***

***<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>***

Meeting ID: 161 548 7764

Passcode: 502070

***If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>***

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/22/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0005885

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF:    AMERICAN EXPRESS  
NATIONAL BANK

vs.

DEFENDANT: MERSHAD REZAYATI

NATURE OF PROCEEDINGS: MOTION – OTHER: TO VACATE THE CONDITIONAL  
DISMISSAL AND FOR ENTRY OF JUDGMENT

**RULING**

Plaintiff American Express National Bank (“Plaintiff”) filed a motion to vacate the conditional dismissal and enter judgment. A proof of service indicates that Defendant Resayati (“Defendant”) was served with notice of the motion, but the hearing date was either not listed, or was stamped in a place which was too difficult to notice. No opposition was filed. The court shall continue this motion to September 9, 2026 at 1:30 pm to ensure notice is given to Defendant. Plaintiff is required to file a proof of service which shows it served Defendant with a notice of continuation of the hearing to September 9, 2026 at 1:30 pm.

***All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.***

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